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Case Number: 24NWCV00819 Hearing Date: August 5, 2026 Dept: D

RONALD M. BEILKE V. THE

VILLAGES AT HERITAGE SPRINGS HOMEOWNERS ASSOCIATION, ET AL.

CASE NO.: 24NWCV00819

HEARING: 08/05/2026 @ 9:30 a.m.

#10

TENTATIVE ORDER

Cross-Defendant Ronald M.

Beilke's motion to quash subpoena duces tecum to JP Morgan Chase Bank, N.A., is GRANTED.

Cross-Defendant Ronald M.

Beilke's motion to quash subpoena duces tecum to Beltini Group LLC is GRANTED.

Cross-Defendant Ronald M.

Beilke's request for a protective order is GRANTED to the extent the records produced pursuant to the subpoena shall not be used, disclosed, or disseminated pending further order of the Court.

Cross-Defendant Ronald M.

Beilke's requests for monetary sanctions are DENIED.

Moving party to give notice.

Cross-Defendant Ronald M. Beilke

(Beilke) moves for a protective order and an order quashing the subpoenas duces tecum to non-parties JP Morgan Chase Bank, N.A. and Beltini Group LLC for personal appearance and production of documents, electronically stored information and things at trial or hearing issued by Cross-Complainant The Villages at Heritage Springs Homeowners Association (HOA).

Background

On December 23, 2025, HOA served a subpoena duces tecum for personal appearance and production of documents at trial or hearing on non-party, JP Morgan Chase Bank, N.A., seeking Beilke's personal bank records.

On January 21, 2026, HOA served a subpoena duces tecum for personal appearance and production of documents at trial or hearing on non-party, Beltini Group LLC, which is Beilke's small family business.

On January 23, 2026, Beilke filed the instant motions to quash the subpoenas.

On May 12, 2026, HOA filed oppositions.

On May 14, 2026, Beilke filed replies.

On May 15, 2026, HOA filed objections to Beilke's replies. That same day, Beilke filed responses to said objections.

Preliminary Matters

New

Arguments Raised in Reply

After Beilke filed the reply, HOA filed objections arguing that Beilke improperly raised new arguments and requests for relief for the first time in reply. Beilke thereafter filed a response to those objections without leave of court.

The Court need not determine whether either filing was procedurally proper.

To the extent Beilke's reply raises new arguments, evidence, or requests for relief that were not presented in the moving papers, the Court declines to consider them. It is well established that a moving party may not raise new issues for the first time in reply because doing so deprives the opposing party of a meaningful opportunity to respond. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537; People v. Williams (1999) 20 Cal.4th 119, 129; San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 316.)

Accordingly, the Court has considered only those arguments in Beilke's reply that respond to issues raised in the Opposition and has disregarded any new arguments or requests for relief first raised in reply.

Mootness

As a preliminary matter, HOA argues that Beilke's motions to quash are moot because (1) JPMorgan Chase Bank, N.A. has already produced the documents sought by the subpoena, and (2) the subpoena directed to Beltini Group LLC was never personally served and was subsequently withdrawn.

The Court is not persuaded.

With respect to the subpoena served on JPMorgan Chase Bank, N.A., the Court retains authority to consider the motion notwithstanding the production of the requested documents. "A motion to quash is typically filed before the time for production (see, e.g., Code Civ. Proc., § 1985.3, subd. (g)), but the court has authority to consider the motion even if brought after the date for production." (In re R.R. (2010) 187 Cal.App.4th 1264, 1278 (In re R.R.)) Likewise, "[n]othing in the procedure set forth above suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production." (Slagle v. Superior Court (1989) 211 Cal.App.3d 1309, 1312-1313.) Accordingly, Chase Bank's production of the subpoenaed records does not, by itself, render Beilke's motion moot.

Nor does the withdrawal of the Beltini subpoena render Beilke's motion moot. In *Roe v. Halbig* (2018) 29 Cal.App.5th 286, the Court of Appeal held that a moving party may still "prevail" on a motion to quash under Code of Civil Procedure section 1987.2 even where the subpoena is voluntarily withdrawn before the trial court rules on the motion. (Id. at pp. 305-308.) Thus, the subsequent withdrawal of the subpoena does not deprive the Court of authority to adjudicate the motion or otherwise determine whether relief under Code of Civil Procedure section 1987.1 is appropriate.

Additionally, HOA has not cited authority demonstrating that the Court lacks the ability to issue a protective order concerning documents already produced. Because effective relief may still be available, the Court finds that the motions are not moot and will consider them on their merits.

Legal Standard

Code of Civil Procedure section 1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Ibid.) Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). (Code Civ. Proc., § 1987.1, subd. (b).)¿

Analysis

Beilke moves for a protective order and an order quashing the subpoenas issued by HOA on the grounds that (1) the subpoenas are unsupported by a legally sufficient affidavit or declaration; (2) the discovery sought is irrelevant, overbroad, and not reasonably

calculated to lead to the discovery of admissible evidence; (3) the subpoenas impermissible seek information relating to Beilke's financial condition; (4) the discovery sought is not relevant to the issues raised by the operative pleadings in this action; and (5) the subpoenas are procedurally improper.

"Any party may obtain

discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action." (Code Civ.

Proc., § 2017.010.) "For discovery

purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.'" (Lipton v. Superior Court (1996) 48

Cal.App.4th 1599, 1611.) "The phrase

"reasonably calculated to lead to the discovery of admissible evidence" makes

it clear that the scope of discovery extends to any information that reasonably

might lead to other evidence that would be admissible at trial." (Id. at 1611-1612.) The scope of discovery is "one of reason, logic and common sense" and should not be limited to the "precise legal and

factual issues" involved in a particular action. (See *Jessen v. Hartford Cas. Ins. Co.* (2003)

111 Cal.App.4th 698, 711.) The burden is

placed upon the party opposing discovery to show good cause for a protective order limiting discovery. (Valley

Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.)

Good

Cause

In considering whether good cause

has been shown to enforce a subpoena that has been challenged by a motion to

quash, the trial court should consider: (1) if defendant carried his burden of

showing a plausible justification for acquiring documents from a third party;

(2) whether material sought is adequately described and not overly broad; (3)

whether material is reasonably available to the entity from which it is sought

and not readily available to defendant from other sources; (4) whether

production of requested materials would violate a third party's confidentiality

or privacy rights or intrude upon any protected governmental interest; (5)

whether defendant's request is timely; (6) whether time required to produce

requested information would necessitate an unreasonable delay of defendant's

trial; and (7) whether production of records containing the requested information would place an unreasonable burden on a third party.¿ (Facebook, Inc. v. Superior Court of San Diego County (2020) 10 Cal.5th 329, 345.)¿

Subpoena

as to JP Morgan Chase Bank, N.A.

The subpoena served upon JPMorgan Chase Bank, N.A., seeks:

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“All DOCUMENTS reflecting monthly bank statements from January 1, 2015 through December 31, 2017 for any account held in the name of Ronald M. Beilke, either individually or jointly, including any business accounts for which he is signatory.”

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“All DOCUMENTS reflecting monthly bank statements from January 1, 2020 to the present for any account held in the name of Ronald M. Beilke, either individually or jointly, including any business accounts for which he is signatory.”

(Lopez Decl., ¶ 2, Ex. 1.)

Beilke argues that the subpoena is unsupported by a legally sufficient affidavit or declaration because HOA fails to establish good cause for production of Beilke's personal banking records. Specifically, Beilke contends the declaration does not explain how the requested records are material to the claims asserted in the Cross-Complaint, instead relying on conclusory assertions that the records may contain evidence relating to the alleged misappropriation of HOA funds. (Motion pp. 7-8.) Beilke further argues that the declaration fails to identify any allegation that HOA funds were deposited into Beilke's personal bank accounts or otherwise explain why years of personal banking records are necessary to resolve the issues presented in this action. (Ibid.)

HOA responds that the subpoena is supported by a legally sufficient declaration establishing good cause for production. HOA argues the declaration

explains that Beilke served as President of the HOA during the period in which he allegedly misappropriated Association funds and that the requested banking records are reasonably calculated to reveal whether Beilke deposited, transferred, concealed, or otherwise benefited from those funds. (Opp., pp. 6-7.) HOA further contends the declaration adequately identifies the categories of records sought, the relevant time periods, and the factual basis supporting the request, thereby satisfying the requirements of Code of Civil Procedure section 1985, subdivision (b).

In reply, Beilke maintains that HOA has not demonstrated good cause for the subpoena or established the materiality of Beilke's personal banking records. Beilke argues that the Opposition fails to identify any allegation in the operative Cross-Complaint that HOA funds were deposited into Beilke's personal bank accounts or otherwise explain why the requested records are relevant to the claims asserted. (Reply pp. 10-11.) Beilke further contends that HOA's assertion that the records may reveal evidence of misappropriation is speculative and insufficient to justify the production of years of confidential financial records. (Id. at p. 11.)

The Court finds that although HOA articulates a plausible basis for seeking financial discovery arising from the allegations of misappropriation, it has not demonstrated that the particular records sought are reasonably necessary or sufficiently connected to the claims asserted in the operative Cross-Complaint. The First Amended Cross-Complaint (FACC) alleges that Beilke misappropriated Association funds by using the Association's Operating Account and debit card to make unauthorized personal expenditures and by transferring funds from the Association's Reserve Fund into the Operating Account. (FACC, ¶¶ 16, 19, 20.) It does not allege that Association funds were deposited into Beilke's personal bank accounts or otherwise concealed through those accounts. HOA therefore relies largely on speculation that Beilke's personal banking records might reveal additional evidence of wrongdoing. Such speculation, standing alone, is insufficient to overcome Beilke's significant privacy interest in years of personal banking records, particularly where the alleged misconduct may be investigated through less intrusive sources, including the Association's own financial records, debit-card records, and audit materials.

Accordingly, Beilke's motion to quash the JPMorgan Chase subpoena is GRANTED.

Subpoena

as to Beltini Group LLC

The subpoena served upon Beltini

Group LLC seeks:

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"All DOCUMENTS reflecting income received from
the operations of Temple Bar Urban Eats from January 1, 2023 to the present.

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All DOCUMENTS that identify the business address
for Temple Bar Urban Eats.

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All DOCUMENTS that identify the number of
employees at Temple Bar Urban Eats from January 1, 2023 to the present.

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All DOCUMENTS that identify the hours of
operation at Temple Bar Urban Eats from January 1, 2023 to the present.

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All DOCUMENTS reflecting YOUR tax returns for
Temple Bar Urban Eats for tax years 2023 and 2024, including any attachments.

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All DOCUMENTS reflecting any payment made by YOU
to Ronald M. Beilke in connection to the operations of Temple Bar Urban Eats
from January 1, 2023 to the present.

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All DOCUMENTS reflecting YOUR formation,
including any articles of organization or other filings with the California
Secretary of State.

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All DOCUMENTS consisting of or reflecting YOUR
ownership of Temple Bar Urban Eats, including but not limited to YOUR

management operating agreement.

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All DOCUMENTS identifying Ronald M. Beilke as an owner, operator, or manager of Temple Bar Urban Eats.

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All COMMUNICATIONS between YOU and Ronald M. Beilke from January 1, 2023 to the present.”

(Lopez Decl., ¶ 2, Ex. 1.)

As discussed above, Beilke argues that the subpoena is unsupported by a legally sufficient affidavit or declaration because HOA fails to establish good cause for production of the requested records. Beilke further contends that the declaration does not explain how the requested records are material to the claims asserted in the Cross-Complaint. In particular, Beilke argues that the operative Cross-Complaint contains no allegations that Beltini Group LLC or Temple Bar Urban Eats received Association funds, participated in the alleged misappropriation, or otherwise played any role in the events giving rise to this litigation. (Motion, pp. 11-14.)

In opposition, HOA argues that Beilke owns and operates Temple Bar Urban Eats through Beltini Group LLC and that the requested records are reasonably calculated to reveal whether Association funds were diverted to, used for the benefit of, or otherwise connected to Beilke's business operations. (Opp., pp. 10-12.)

Likewise, as discussed above, Beilke maintains in reply that HOA has failed to demonstrate good cause or establish the materiality of the requested business records. (Reply, pp. 15-17.)

The Court finds that HOA has not demonstrated that the particular records sought from Beltini Group LLC are reasonably necessary or sufficiently connected to the claims asserted in the operative Cross-Complaint. As discussed above, the FACC alleges that Beilke misappropriated Association funds by using the Association's Operating Account and debit card to make unauthorized personal expenditures and by transferring funds from the Association's Reserve

Fund into the Operating Account. It does not allege that Association funds were transferred to Beltini Group LLC, invested in Temple Bar Urban Eats, or otherwise funneled through the business. Nor does it allege that Beltini Group LLC participated in or benefitted from the alleged misconduct.

Nevertheless, the subpoena seeks extensive financial and operational records of a nonparty business, including tax returns, income records, organizational documents, ownership records, employee information, and communications spanning more than two years. Without a factual showing connecting those records to the claims asserted in the operative pleading, HOA' assertion that they may reveal evidence of misappropriation is speculative.

Accordingly, Beilke's motion to quash the Beltini Group LLC subpoena is GRANTED.

Sanctions

Beilke requests monetary sanctions, and HOA likewise requests monetary sanctions pursuant to Code of Civil Procedure section 1987.2.

The Court declines to award sanctions to either party.

Although the Court concludes that the subpoenas should be quashed, the record does not demonstrate that HOA acted in bad faith or without substantial justification in issuing the subpoenas. Likewise, the Court does not find that Beilke acted in bad faith or without substantial justification in bringing the instant motions.

Accordingly, the Court exercises its discretion to DENY both parties' requests for sanctions.

Conclusion

Based on the foregoing, Cross-Defendant Ronald M. Beilke's motion to quash subpoena duces tecum to JP Morgan Chase Bank, N.A., is GRANTED.

Cross-Defendant Ronald M.

Beilke's motion to quash subpoena duces tecum to Beltini Group LLC is GRANTED.

Cross-Defendant Ronald M.

Beilke's request for a protective order is GRANTED to the extent the records produced pursuant to the subpoena shall not be used, disclosed, or disseminated pending further order of the Court.

Cross-Defendant Ronald M.

Beilke's requests for monetary sanctions are DENIED.